juncture, it becomes important to broadly understand the intent and import of Article 25, which will help better comprehend the judgment. As we shall see, it could be argued based on the language of Article 25 that the distinction between ‘religious’ and ‘secular’ is directly embedded in it, which resonates with the Christian or Lockean position.

Article 25(1) of the Constitution guarantees to all persons the freedom of conscience and the right to freely profess, practise and propagate ‘religion’ subject to public order, morality, health and other provisions of that part of the Constitution. Article 25(2)(a) enables the State to make laws ‘regulating or restricting any economic, financial, political or *other secular activity which may be associated with religious practice*’. Effectively, Article 25(2)(a) strikes the very same distinction between the religious and the secular that is inherent to the Christian framework. I would find it exceedingly difficult to dismiss this as mere coincidence. Whether the language of this provision is attributable to Christian colonial consciousness of the framers of the Constitution and whether they were aware of its Christian normative framework are aspects that will be explored in the sequel to this book.

What is, however, relevant for the current discussion is that it is this distinction between the religious and the secular that enables the Indian State to enact laws that regulate religious and charitable activities. While this power is available to the Indian State in relation to institutions of *all* faiths, thus far it has chosen to exercise this power primarily in relation to Hindu institutions. The claimed ideological proclivities of no dispensation has made a difference to this pattern, underscoring the presence of colonial consciousness across the political spectrum with the difference being in degree, at best.

Here is the relevant extract from the Shirur Math Judgement that captures the genesis of the Essential Religious Practices Test based on the religious versus secular distinction reflected in the language of Article 25(2)(a):

> The learned Attorney-General lays stress upon clause (2)(a) of the article and his contention is that *all secular activities, which may be associated with religion but do not really constitute an essential part of it, are amenable to State regulation*.
>
> The contention formulated in such broad terms cannot, we think, be supported. *In the first place, what constitutes the essential part of a religion is primarily to be ascertained with reference to the doctrines*